

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2021-6850

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF JOEL LANDON WATTS, LICENSE NO. LPC.0016331,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Joel Landon Watts ("Respondent"), as follows:

- 1) The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
- 2) Respondent was licensed to practice as a licensed professional counselor in the state of Colorado on July 7, 2020.
- 3) This Order is a full and final resolution of case number 2021-6850. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
- 4) Based on its review of case number 2021-6850, although Respondent did file a report with the Delta County Child protective services, the Board maintains that the report was untimely pursuant to C.R.S. §19-3-304(1)(a), thereby violating the C.R.S. §12-245-224(1)(g)(I).
- 5) Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated section 12-245-224(1)(g)(I), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

PROBATION

6) Respondent's license to practice as a licensed professional counselor in the state of Colorado is hereby placed on probation for a period of eighteen (18) months commencing from the effective date of November 22, 2022. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. Respondent understands and agrees that a failure to meet any of the terms of probation may result in further disciplinary action against his license.

7) The period of probation is tolled during any time Respondent is not practicing as a licensed professional counselor in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8) Credit towards the period of probation will be given only for those periods of time during which Respondent is practicing as a licensed professional counselor in the State of Colorado and is in full compliance with all terms of this Order.

9) Respondent shall report to the Board if he discontinues the practice of licensed professional counseling. Respondent shall notify the Board upon resuming the practice of licensed professional counseling.

10) If, after twelve (12) months, Respondent has adhered to all terms and conditions of this Order, Respondent may request early termination of probation. Request for termination must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation. The Board will consider and decide any such request for early termination at the next scheduled Board meeting immediately following when any such request is made. The Board will not unreasonably withhold approving Respondent's request for the early termination of the probation and shall approve such request if Respondent has satisfied all terms and conditions of this Stipulation up to the time the request is made.

PRACTICE MONITOR

11) During the period of probation, for twelve (12) months, Respondent's practice shall be monitored by practice monitor, Dr. Reo Leslie.

12) Respondent and the practice monitor shall enter into a written contract for monitoring within 30 days. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

13) The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

14) Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability, or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

15) The practice monitoring shall consist of individual, virtual sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month for six (6) months. Respondent and his practice monitor must review and discuss Respondent's active cases in a sufficient number so as to allow the practice monitor to be able to determine whether Respondent is practicing as a Licensed Professional Counselor in accordance with generally accepted standards of practice and with skill and safety for his clients.

16) Following the initial six (6) meetings, Respondent is to meet with practice monitor quarterly over the next six (6) month for a total of two (2) additional meetings.

17) The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the next five (5) reports. After the submission of the first six (6) reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) for the next two (2) reports until the practice monitoring is completed.

18) If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

19) If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. The submission of such a report may result in further disciplinary action against Respondent's license.

20) Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

21) Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

22) Within twelve (12) months of the effective date of this Order, Respondent shall successfully complete ten (10) hours of continuing education credits in the area of mandatory reporting. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board.

23) These program hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado credentialing or to meet any other credentialing requirements.

TERMS AND CONDITIONS

24) Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

25) This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

26) This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

27) This Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

28) This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

29) This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

30) This Order shall be admissible as evidence at any hearing held before the Board.

31) This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED
BY:

RESPONDENT



JOEL LANDON WATTS
License No. LPC.0016331

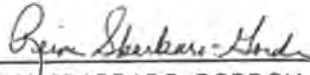
APPROVED AS TO FORM:



CRAIG SARGENT
Attorney for Respondent

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 6th day of January, 2023.